

GZ: 2021-0.568.642 of September 29, 2021 (Case Number: DSB-D205.482)

[Note from the editor: Names and companies, legal forms and product names, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION RULING

The Data Protection Authority decides on the data protection complaints of Rudolf A*** (first complainant) and Irene A*** (second complainant), both dated December 8, 2019 (received on December 9, 2019), against N* GmbH (respondent) due to alleged violation of the right to confidentiality as follows:

1. The complaints are dismissed as unfounded.
2. The requests of the first complainant and the second complainant for compensation for the damages caused by the legal violation are rejected.

Legal bases: Art. 4, Art. 6 para. 1 lit. f, Art. 51 para. 1, Art. 57 para. 1 lit. f as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1, 18 para. 1, 24 para. 1, para. 2 and para. 5 as well as 29 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 17 para. 3 and 39 para. 2 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51/1991 as amended; § 151 of the Trade Regulation Act 1994 (GewO 1994), Federal Law Gazette No. 194/1994 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In initial submissions dated December 8, 2019 (received on December 9, 2019), the complainants alleged a violation of the right to confidentiality. The proceedings were subsequently joined for joint treatment in accordance with § 39 para. 2 AVG.
2. Regarding the alleged legal violation, the complainants stated that it was entirely beyond their knowledge how the respondent obtained their personal data. There was a possibility that this data had been obtained from the former employment relationship of the first complainant or from the bank account of the second complainant. The submissions included copies of the respective information letters.
3. By decision dated May 28, 2020, the Data Protection Authority requested the respondent to provide a statement.
4. In a submission dated June 10, 2020, the respondent stated that it had the commercial authorization of an address publishing and direct marketing company. Based on this, it had obtained the personal data of the complainants. Consent was not required. The provided information indicated that the respondent had received the data from other address publishers. The data records of the complainants had been blocked due to the inquiry and were no longer shared.
5. By decision dated November 10, 2020, the Data Protection Authority granted the complainants the right to be heard.
6. No further statement was made by the complainants.
7. By decision dated August 12, 2021, the Data Protection Authority requested the respondent to submit the statements of the data suppliers referred to in accordance with § 151 para. 4 and 5 GewO.
8. In a submission dated August 20, 2021, the respondent submitted the requested documents, which were exempted from inspection based on a corresponding request according to § 17 para. 3 AVG and therefore were not transmitted to the complainants within the framework of the right to be heard.

B. Subject of the complaint

Based on the initial submission, the subject of the complaint arises from the question of whether the respondent violated the first complainant and the second complainant in their right to confidentiality according to § 1 para. 1 DSG by obtaining their address data, specifically salutation, name, date of birth, and address, from the customer and prospect databases of other address and direct marketing

companies.

C. Findings of fact

1. Following a corresponding request from the first complainant, the respondent provided a data protection-related information on April 2, 2019, which was presented as follows (formatting not reproduced 1:1, excerpted as far as relevant to the proceedings):

YOUR REQUEST FOR INFORMATION UNDER ART. 15 GDPR

April 2, 2019

Dear Sir or Madam,

We are pleased to respond to your inquiry regarding the data processed about you.

For your information, here is a brief overview of the purposes of data processing:

1. ****Data processing for the purpose of transportation and delivery of shipments****

This data processing is necessary to carry out the transportation and delivery service in the usual quality. In order to deliver shipments, such as letters and packages, N* GmbH (hereinafter also referred to as "N*") processes names and addresses as well as other data related to the shipment.

2. ****Data processing for our own marketing purposes****

N* provides comprehensive information about its own products and services and processes data for this purpose.

3. ****Data processing within the framework of address publishing****

N* uses data, as far as legally permissible, in the context of its activities as an address publisher and offers this to business customers for marketing purposes.

4. ****Data processing for the purpose of handling your inquiries****

When you contact us, we process data in order to address your concerns.

More detailed information and additional purposes of data processing can be found at:

[n*.gmbh.com/datenschutz](https://www.n*.com/datenschutz)

You can request the correction of your data at any time in case of inaccuracies or errors. Additionally, you have the right to data portability in certain cases, which means you can request the release of your personal data provided to us in a structured, commonly used, and machine-readable format. Under certain conditions, you can request the restriction of processing as well as the deletion of your personal data or object to the processing. We would like to inform you that the statistical estimates regarding "potential target group for Y****" (if they exist at all) will be deleted following this notice.

You can revoke any consent you may have given at any time without stating reasons, with effect for the future; data processing carried out until the revocation remains unaffected.

For further questions, please use our contact form at

https://www.n*.com/kontakt

If you wish to contact us by post or if our information at [n*.gmbh.com/datenschutz](https://www.n*.com/datenschutz) is not accessible to you, please write to:

N* GmbH

Customer Service

R***gasse 9*

1**0 Vienna

Additionally, you have the option to file a complaint with the Austrian Data Protection Authority, Barichgasse 40-42, 1030 Vienna.

We hope that we have addressed your inquiry to your satisfaction. Further information about the use of data at N* GmbH can be found on our homepage at [n*.com](https://www.n*.com) in the area of data protection notices. In the attachment, we would like to provide you with the data information regarding your data processed for marketing purposes as well as the statistical estimates created in this context, in light of the current media coverage.

N*

Stored Data

Data Source: W*** Direkt GmbH

Field Designation

Data Record

Data Record Number

5****1047***

Salutation

Mr.

First Name

Rudolf

Last Name

A***

Date of Birth

25.03.19**

Street

K***straße 3*

Postal Code

*020

City

W***

Number of Moves

2

Position in Household

Likely

Household Head

Function Level

Undefined

(Student/Student/Apprentice)

Partnership 1

Traditional Couple

Minimum Annual Income/Person in

Euros 2

25,000 Euros

Life Phase Person 3

Developing,

Couple/Family,

Age up to 49 years or

Child(ren)

Data Transfer

For reference and statistical purposes

Dominant Geo Environment

Consumption-oriented Base

Probability Value

Conservative

7.13%

Probability Value

Traditional

3.01%

Probability Value Established

7.09%

Probability Value Performer

11.44%

Probability Value

Post-material
7.12%
Probability Value
Digital
Individualists
8.26%
Probability Value Bourgeois
Middle
9.81%
Probability Value
Adaptive
Pragmatic
7.6%
Probability Value
Consumption-oriented Base
27%
Probability Value Hedonists
11.54%

The supplier of the above data is:

W*** Direkt GmbH
***straße *
1*** Vienna
E-Mail: office@w***.at

1 calculated based on gender, age, and last names of other persons living in the household
2 Income estimate assigned to your person; calculated based on statistical data such as municipal purchasing power, average income per regional statistical grid, age, gender, and academic degree.
3 Individuals have different habits and needs depending on the life phase they are in. The life phase model indicates in which life phase the person is located. The life phase is calculated based on gender, age, last names, other persons living in the household, and living environment.

****Planned Storage Duration:****

If the data transfer is permissible according to § 151 of the Trade Regulation Act, the data will be processed as long as it is used for marketing purposes of third parties or until you request deletion of the data. If you have prohibited the data transfer to third parties according to § 151 of the Trade Regulation Act, your name, address, and possibly your date of birth will only be used to exclude data transfer to third parties. This data usage will continue until you request the deletion of your data.

****Stored Data****

Data Source: Marketing ***XY AG

Field Designation
Data Record
Data Record Number
7***398***

Salutation

Mr.

First Name

Rudolf

Last Name

A*

Date of Birth

25.03.19**

Street

K***straße 3*

Postal Code

*020

City

W****

Data Usage

Data transfer according to § 151 of the Trade Regulation Act permissible

Supplier of this Data is:

Marketing ***XY AG

M***straße 9*

6*** L***

Email: ** @xy***.at

Planned Storage Duration:

The data will be stored for 3 months. As soon as an update from Marketing ***XY AG is received, the data will be deleted and replaced by the data from the update.

Your Orders to N* GmbH

Field Designation

Order

Order

Order

Type of Order

Delivery Authorization

Delivery Authorization

Forwarding Order Domestic

Permanent

Form Number

3****5932721*

3****3859017

1****947202

Identification

27kjjdHui****III*****

31**5II08jjjj4***

40****18jjj364**III

Valid From

20.2.2019

24.12.2018

03.12.2018

Valid Until

Revocation

Revocation

02.12.2019

Data Transfer

Data Transfer according to
§ 151 of the Trade Regulation Act
permissible

Salutation

Mr.

Mr.

Mr.

First Name

Rudolf

Rudolf
Rudolf
Last Name
A***
A***
A***
Date of Birth
25.03.19**
25.03.19**
Area Code
68*
68*
68*
Phone Number
*496308
*496308
*496308
Email
a***.rudolf@aon.at
a***.rudolf@aon.at
Data Record Number
29753***
29296***
29471***
Street AFTER
L***
House Number AFTER
5
Postal Code AFTER
*020
City AFTER
E*
Street FROM
L*
L*
K***straße
House Number FROM
5
5
3*
Postal Code FROM
*021
*021
*022
City FROM
W***
W***
M***
Date of Issuance
16.02.2019
19.02.2018
21.11.2018

****Planned Storage Duration:****

For orders where the data transfer is permissible according to § 151 of the Trade Regulation Act, the data will be processed as long as it is used for marketing purposes of third parties or until you request deletion of the data. The order serves as proof that you have been legally informed and that the data is processed lawfully. If you have prohibited the data transfer according to § 151 of the Trade Regulation Act, the order will be deleted 3 years after the end of the forwarding.

If you have placed orders where you were not informed about data usage for marketing purposes of third parties according to § 151 of the Trade Regulation Act, the data will be deleted 3 years after the end of the contract. Such orders include, for example, delivery authorizations or postal powers of attorney.

****Purpose of Processing:****

Your data will be processed for the proper execution of your order and to verify whether the usage according to § 151 of the Trade Regulation Act is permissible.

2. Following a corresponding request from the second complainant, the respondent provided a data protection information in May 2019, which was as follows (formatting not reproduced 1:1, excerpted as far as procedurally relevant):

****YOUR REQUEST FOR INFORMATION UNDER ART. 15 GDPR****

May 2019

Dear Madam, Dear Sir,

We are pleased to respond to your inquiry regarding what data about you is being processed.

First, for your information, a brief overview of the purposes of data processing:

Data processing for the purpose of transportation and delivery of shipments

This data processing is necessary to carry out the transportation and delivery service in the usual quality. In order to deliver shipments, letters, and packages to you, N* GmbH (hereinafter also referred to as "N*") processes names and addresses as well as other data of the shipment.

Data Processing for Own Marketing Purposes

N* provides comprehensive information about its own products and services and processes data for this purpose.

Data Processing in the Context of Address Publishing

N* uses data, as far as legally permissible, in the context of its activities as an address publisher and offers this data to business customers for marketing purposes.

Data Processing for the Purpose of Handling Your Inquiries

When you contact us, we process data in order to address your concerns.

Detailed information and further data processing purposes can be found at:

n*gmbh.com***/datenschutz

You can request the correction of your data at any time in case of inaccuracies or errors. Additionally, you also have the right to data portability in certain cases, which means you can request the release of your personal data provided to us in a structured, commonly used, and machine-readable format.

Under certain conditions, you can request the restriction of processing as well as the deletion of your personal data or object to the processing. We would like to inform you that the statistical estimates regarding "potential target group for Y****" (if they exist at all) will be deleted following this notification.

You can revoke any consent given at any time without stating reasons with effect for the future; data processing up to the point of revocation remains unaffected. For further questions, please use our contact form at www.n*@kontakt.at. If you wish to contact us by post, or if our information at n*.com/datenschutz*** is not accessible to you, please write to:

N* GmbH

Customer Service

R***gasse 9*

1**0 Vienna

Additionally, you have the option to file a complaint with the Austrian Data Protection Authority, Barichgasse 40-42, 1030 Vienna.

We hope that we have addressed your inquiry to your satisfaction. Further information about the use of data at N* GmbH can be found on our homepage at n*.com in the area of privacy notices. In the attachment, we would like to provide you, in light of the current media coverage, with the data information regarding your data processed for marketing purposes as well as the statistical estimates created in this context.

Stored Data

Data Source: W*** Direkt GmbH

Field Designation

Data Record

Data Record Number

29***1047*

Salutation

Ms.

First Name

Irene

Last Name

A***

Date of Birth

04.06.19**

Street

K***straße 3*

Postal Code

*020

City

W***

Minimum Annual Income/Person in

Euros ²

13,000 Euros

Life Phase Person ³

expanding,

Couple/Family,

Age up to 49 years or

Child(ren)

Data Transfer

For reference purposes and

statistical purposes

Dominant Geo Milieu

Bourgeois Middle

Probability Value

Conservative

9.23%

Probability Value

Traditional

10.49%

Probability Value Established

8.13%

Probability Value Performer

7.72%

Probability Value

Post-material

12.45%

Probability Value

Digital

Individualists

3.02%

Probability Value Bourgeois

Middle

25.67%

Probability Value

Adaptive

Pragmatic

12.84%

Probability Value

Consumption-oriented Base

5.22%

Probability Value Hedonists

5.23%

² Income estimate assigned to your person, calculated based on statistical data such as municipal purchasing power, average income per regional statistical grid, age, gender, and academic degree.

³ Individuals have different habits and needs depending on the life phase they are in. The life phase model indicates which life phase the person is in. The life phase is calculated based on gender, age, last name, other persons living in the household, and living environment.

Supplier of the above-mentioned data is:

W*** Direkt GmbH

***straße *

1*** Vienna

Email: office@w***.at

Planned Storage Duration:

If the data transfer is permissible according to § 151 Trade Regulation Act, the data will be processed as long as its use for

marketing purposes of third parties occurs or until you request deletion of the data. If you have prohibited the data transfer to

third parties according to § 151 Trade Regulation Act, your name, address, and possibly your date of birth will only be used to

exclude a data transfer to third parties. This data use will continue until you request the deletion of your data.

****Assessment of Evidence:**** The findings regarding points C.1. and C.2. are based on the initial submissions of the complainants as well as the copies of the information letters submitted in this context, the authenticity and accuracy of which were never questioned by the respondent.

3. With submissions dated December 8, 2019 (received on December 9, 2019), the complainants filed the relevant complaints with the Data Protection Authority.

****Assessment of Evidence:**** The finding regarding point C.3. arises from the file situation.

4. The respondent has held a valid business license for the operation of the business of address publishers and direct marketing companies since *June 5, 19**.

****Assessment of Evidence:**** The finding regarding point C.4. is based on an excerpt from the Business Information System Austria (GISA), queried by the Data Protection Authority on September 28, 2021, GISA number: *47**361**.

5. The address data of the complainants, specifically salutation, first and last name, date of birth, and address, were provided to the respondent from a customer and prospect database system of Marketing***XY AG and/or W***Direkt GmbH.

****Assessment of Evidence:**** The findings regarding point C.5. are based on the statements of the respondent as well as the copies of the information letters submitted in the context of the initial submissions of the complainants.

6. Marketing***XY AG declared to the respondent in accordance with § 151 para. 5 GewO that the collection of address data, particularly salutation, name, date of birth, and address, is conducted for marketing purposes in an appropriate manner in accordance with § 151 GewO and that no prohibition has been issued by the affected parties (declaration of no objection). This document was excluded from inspection in accordance with § 17 para. 3 AVG upon request.

7. W***Direkt GmbH declared to the respondent in accordance with § 151 para. 5 GewO that the collection of address data, particularly salutation, name, date of birth, and address, is conducted for marketing purposes in an appropriate manner in accordance with § 151 GewO and that no prohibition has been issued by the affected parties (declaration of no objection). This document was excluded from inspection in accordance with § 17 para. 3 AVG upon request.

****Assessment of Evidence:**** The findings regarding points C.6. and C.7. arise from the file situation.

8. There was no consent from the first complainant and the second complainant for the processing of the datasets mentioned in points C.1. and C.2. at any time. There was also no prohibition of processing for the purpose of direct marketing by the complainants.

9. Following the provision of information on April 2, 2019, or in May 2019 by the respondent, a blocking of the datasets mentioned in points C.1. and C.2. occurred, and these have not been shared with third parties for the purpose of direct marketing since that time.

****Assessment of Evidence:**** The findings regarding points C.8. and C.9. are based on the submissions of the respondent, which remained uncontested by the complainants.

D. From a legal perspective, it follows:

D.1. On the admissibility of "secret evidence"

1.) According to § 45 para. 3 AVG, the parties must be given the opportunity to be informed and to respond to the results of the evidence collection (principle of granting parties a hearing, cf. VwGH March 27, 1990, 89/08/0250).

2.) In exceptional cases, however, the admissibility of a decision justification based on evidence that is excluded from inspection may arise from the ruling of the Constitutional Court of October 10, 2019, E 1025/2018, according to which the interests of procedural parties in access to procedurally relevant information compete with the interests of procedural parties in the protection of confidential information and trade secrets.

3.) Specifically, the Administrative Court stated (emphasis by the Data Protection Authority):

"Neither the right guaranteed by Article 6 of the ECHR within the framework of the principle of equality of arms to access procedural files nor the right protected particularly by Article 8 of the ECHR to confidentiality of business and trade secrets can establish an absolutely protected legal position. Rather, in administrative proceedings or in administrative court proceedings, the right of access to decision-relevant information must be weighed against the rights of other procedural parties to protect their confidential information and trade secrets. The principle of protection of confidential information and trade secrets must be designed in such a way that it meets the requirements of a... effective legal protection and the safeguarding of the procedural rights of the parties involved in the proceedings in accordance with the law, and that it is ensured that the right to a fair trial is respected overall.

[...]

The fact that individual documents are excluded from inspection under § 17 para. 3 AVG does not necessarily mean, in this context, that a violation of the right to be heard in the sense of § 45 para. 3 AVG occurs when the authority nevertheless refers to the corresponding documents. It is indeed a fundamental principle of any lawfully organized administrative procedure that there must be no secret evidence (as specifically addressed in VwGH 17.6.2004, 2003/03/0157; 25.9.2014, 2011/07/0006).

However, in certain exceptional cases, it may be necessary to withhold certain information from the parties in order to protect the fundamental rights of a third party or other participants in the proceedings, or to safeguard important interests of the general public, as long as it is ensured that both the authority and the administrative court called upon in the appeal process have full access to all decision-relevant documents (see ECJ 14.2.2008, Case C-450/06, Varec SA; further Hanslik, aaO, 139 ff.). The information withheld from the parties to the proceedings must be limited to what is absolutely necessary, and all possibilities must be exhausted to restrict the decision-making basis so that withheld information does not need to be used for the decision-making process. The authority or the administrative court must provide a comprehensible justification for the balance between the claim of confidentiality and the right to access files, and thus the transparency of the decision-making basis, so that the parties to the proceedings can subject this to administrative court review or an appeal. In principle, effective legal protection (VfSlg 13.699/1994) and an effective remedy (Art. 13 ECHR) are thus guaranteed on the basis of § 17 AVG.

4.) In the present case, the documents mentioned in the findings C.6. and C.7. ("Certificates of No Objection") and the (detailed) information contained therein were excluded from inspection of the files or presentation to the appellants based on a corresponding request from the respondent in accordance with § 17 para. 3 AVG. However, the consideration of this information by the Data Protection Authority was necessary insofar as the existence of a written "Certificate of No Objection" constitutes a significant legality requirement for processing in the sense of § 151 GewO (see Point D.2.).

5.) It would not have been possible to transmit the evidence excluded from file inspection or from the right to be heard to the appellants without disclosing information covered by the confidentiality interest of the respondent regarding its business relationships with third parties (trade secrets).

6.) At the same time, the interest of the appellants in knowing the entire content of the document is diminished in that the fact that the statements exist is known to the appellants, and thus the withholding of detailed information does not represent a significant limitation of the procedural transparency relevant to the appellants. Moreover, the legal assessment of the statements was to be carried out ex officio by the Data Protection Authority anyway.

7.) A balancing of these conflicting interests in the present case therefore led to the conclusion that this evidence could not be made accessible to the appellants.

D.2. Regarding the subject of the complaint and the legality of data processing (Decision Point 1)

8.) The appellants claimed a violation of the right to confidentiality by asserting that the respondent unlawfully obtained their "most personal" data from a former employment relationship or bank account contract.

9.) Based on this assertion, the Data Protection Authority assumed that the appellants primarily objected to the unlawful processing of the address data – salutation, name, date of birth, and address – and thus the subject of the examination was limited to this category of data. The authority's obligation to conduct an ex officio investigation of the truth does not extend so far as to require it to conduct investigations in every conceivable direction, but only to the extent that indications from the files (e.g., the party's assertion [VfSlg 13.227 A/1990]) provide cause for it (VwGH 4.4.2002, 2002/08/0021).

10.) As can be seen from the findings, the respondent holds a valid business license to operate as an address publisher and direct marketing company. § 151 GewO imposes additional trade law provisions regarding the use of personal data for third-party marketing purposes, alongside the GDPR and the DSG, for those authorized to operate as address publishers and direct marketing companies. As "special data protection law" (see Risz in Ennöckl/N. Raschauer/Wessely, GewO § 151 Rn. 9 with references), the provision contains regulations under which conditions address publishers and direct marketing companies may collect and use personal data.

11.) The direct marketing entrepreneur must have access to data concerning the selected target groups in order to achieve their business purpose. This is also in the interest of the businesses that commission a direct marketing entrepreneur to carry out advertising campaigns. Therefore, the flow of data between the business and the direct marketing company must be enabled in both directions, with the limitation that the transmission of data must always be tied to the purpose of conducting advertising campaigns (cf. Gruber/Paliegge-Barfuß, GewO7, § 151, Rn. 6).

12.) If, as in this case, there is no consent from the affected individuals (Art. 4 No. 11 GDPR) for the transmission of their data for third-party marketing purposes, address publishers and direct marketing companies may only obtain the data explicitly listed in § 151 para. 5 first sentence GewO from a customer and prospect database of a third party. Furthermore, it is a prerequisite that the holder of the database has provided a written declaration of no objection to the business, stating that the affected individuals have been adequately informed about the possibility of objecting to the transmission of their data for third-party marketing purposes, and that no objection has been made (declaration of no objection).

13.) The respondent, as a business, received the address data of the complainants from the customer and prospect database of "Marketing***XY AG" or "W***Direkt GmbH." Since, as established, the necessary declarations of no objection for lawful processing are available, the processing of the address data (salutation, name, date of birth, and address) for marketing purposes was deemed permissible even without explicit consent, and the complaints were ultimately found to be unfounded (cf. also the decision of April 18, 2019, GZ: DSB-D123.986/0003-DSB/2019).

14.) It was therefore decided accordingly.

D.3. Regarding the rejection of the claims for compensation for the damages incurred (Decision Point 2)

15.) The complainants also requested the award of appropriate compensation for the damages they allegedly incurred.

16.) According to § 29 para. 1 DSG, any affected person who has suffered material or immaterial damage due to a violation of the GDPR or the DSG has the right to compensation from the responsible party under Art. 82 GDPR.

17.) However, it should be noted that according to § 29 para. 2 DSG, for claims for damages in the first instance, the regional court responsible for the exercise of jurisdiction in civil matters is competent.

18.) Due to the lack of jurisdiction of the Data Protection Authority, it was decided accordingly.